

Software Product Development Non-Disclosure Agreement (NDA)

This Software Development Non-Disclosure Agreement (the “Agreement”) is entered into by and between American Green Solutions with its principal offices at 1201 Bush Blvd. Bolingbrook, IL 60490, (“Disclosing Party”) and _____, located at _____ (“Receiving Party”) for the purpose of preventing the unauthorized disclosure of Confidential Information as defined below. The parties agree to enter into a confidential relationship with respect to the disclosure of certain proprietary and confidential information (“Confidential Information”).

1. Definition of Confidential Information

For purposes of this Agreement, “Confidential Information” shall include all information or material that has or could have commercial value or other utility in Disclosing Party’s business and is treated with confidentiality. Such information includes, but is not limited to unpublished computer code, design definitions and specifications, flow diagrams and flowcharts, formulas and algorithms, system and user documentation, data structures and data compilations, marketing and sales data, customer lists, and pending patent applications. If Confidential Information is in written form, the Disclosing Party shall label or stamp the materials with the word “Confidential” or some similar warning. If Confidential Information is transmitted orally, the Disclosing Party shall promptly provide a writing indicating that such oral communication constituted Confidential Information.

2. Exclusions from Confidential Information

Receiving Party’s obligations under this Agreement do not extend to information that is: (a) publicly known at the time of disclosure or subsequently becomes publicly known through no fault of the Receiving Party; (b) discovered or created by the Receiving Party before disclosure by Disclosing Party; (c) learned by the Receiving Party through legitimate means other than from the Disclosing Party or Disclosing Party’s representatives; or (d) is disclosed by Receiving Party with Disclosing Party’s prior written approval.

3. Obligations for Receiving Party

Receiving Party shall hold and maintain the Confidential Information in strictest confidence for the sole and exclusive benefit of the Disclosing Party. Receiving Party shall carefully restrict access to Confidential Information to employees, contractors and third parties as is reasonably required and shall require those persons to sign nondisclosure restrictions at least as protective as those in this Agreement. Receiving Party shall not, without prior written approval of Disclosing Party, use for Receiving Party’s own benefit, publish, copy, or otherwise disclose to others, or permit the use by others for their benefit or to the detriment of Disclosing Party, any Confidential Information. Receiving Party shall return to Disclosing Party all records, notes, and other written, printed, or tangible materials in its possession pertaining to Confidential Information immediately if Disclosing Party requests it in writing.

Initials _____

4. Non-Use of Developed Software

The Receiving Party acknowledges that any software, source code, object code, applications, systems, documentation, enhancements, modifications, or related materials developed, created, or reduced to practice in connection with the Purpose (collectively, the “Developed Software”) shall be the exclusive property of the Disclosing Party, unless otherwise agreed in writing.

The Receiving Party further agrees that for a period of two (2) years following the completion or termination of the project, the Receiving Party shall not:

- a) Use the Developed Software for its own benefit or for the benefit of any third party;
- b) Reproduce, modify, license, sell, distribute, or commercialize the Developed Software;
- c) Incorporate the Developed Software, in whole or in part, into any other product or service;
- d) Develop or assist in developing any substantially similar software derived from or based upon the Developed Software.

Nothing in this section restricts the Receiving Party from using general skills, knowledge, or experience acquired during the engagement, provided that no Confidential Information or proprietary elements of the Developed Software are used.

5. Time Periods

The nondisclosure provisions of this Agreement shall survive the termination of this Agreement and Receiving Party’s duty to hold Confidential Information in confidence shall remain in effect until the Confidential Information no longer qualifies as a trade secret or until Disclosing Party sends Receiving Party written notice releasing Receiving Party from this Agreement, whichever occurs first.

6. Relationships

Nothing contained in this Agreement shall be deemed to constitute either party a partner, joint ventures or employee of the other party for any purpose.

7. Severability

If a court finds any provision of this Agreement invalid or unenforceable, the remainder of this Agreement shall be interpreted so as best to affect the intent of the parties.

8. Integration

This Agreement expresses the complete understanding of the parties with respect to the subject matter and supersedes all prior proposals, agreements, representations and understandings. This Agreement may not be amended except in a writing signed by both parties. 9. Waiver

The failure to exercise any right provided in this Agreement shall not be a waiver of prior or subsequent rights.

10. Injunctive Relief

Any misappropriation of Confidential Information in violation of this Agreement may cause Disclosing Party

Initials _____

irreparable harm, the amount of which may be difficult to ascertain, and therefore Receiving Party agrees that Disclosing Party shall have the right to apply to a court of competent jurisdiction for an order enjoining any such further misappropriation and for such other relief as Disclosing Party deems appropriate. This right of Disclosing Party is to be in addition to the remedies otherwise available to Disclosing Party.

11. Indemnity

Receiving Party agrees to indemnify Disclosing Party against any and all losses, damages, claims or expenses incurred or suffered by Disclosing Party as a result of Receiving Party's breach of this Agreement.

12. Attorney Fees and Expenses

In a dispute arising out of or related to this Agreement, the prevailing party shall have the right to collect from the other party its reasonable attorney fees and costs and necessary expenditures.

13. Jurisdiction

The parties' consent to the exclusive jurisdiction and venue of the federal and state courts located in Will County of Illinois in any action arising out of or relating to this Agreement. The parties waive any other venue to which either party might be entitled by domicile or otherwise.

14. Governing Law

This Agreement shall be governed in accordance with the laws of the State of Illinois.

15. Successors & Assigns

This Agreement shall bind each party's heirs, successors and assigns. Receiving Party may not assign or transfer its rights or obligations under this Agreement without the prior written consent of Disclosing Party.

Disclosing Party: American Green Solutions

(Signature)

Name: Shree Yerramsetti

Title: CEO

Date: _____

Receiving Party:

(Signature)

Name: _____

Title: _____

Date: _____

Initials _____

 Certificate of Completion

Summary

E-sign Tracking ID	
Document Name	Software Product Development NDA.pdf
Type	Digital Signature
Status	
Page Count	3
Signer/Reviewer Count	
Sent At	
Completed At	
Title	
Signing Order	Enabled

Holder Details

Holder Name Carrie Lu	Email carriel@libsysinc.com
Address	

Recipient Details

Recipient 1 Name	Authentication Login ID, Password	IP Address
Email	Consent	Device
Signature Type Drawn Signature	Signature	Timestamp Sent Time: Signed Time:

Recipient 2 Name	Authentication Login ID, Password	IP Address
Email	Consent	Device
Signature Type Drawn Signature	Signature	Timestamp Sent Time: Signed Time: